

Elizabeth De Jesus Gutierrez (paralegal)	\$150	.2	\$30.00
Michelle Karpathy (paralegal)	\$150	1.1	\$165.00
TOTAL		99.55	\$45,808.75

The purpose of the lodestar enhancement is “to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation.” (*Id.*) The court finds that this was a typical lemon law case with no exceptional quality of representation. No multiplier is awarded.

As for costs, Plaintiff filed a memorandum of costs. Defendant’s remedy was to file a motion to tax costs.

Grant motion and award fees of \$45,808.75. Grant and award all costs in the amount of \$6,973.98.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2406954	HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION	MOTION TO COMPEL DEFENDANT RIVERSIDE COUNTY OFFICE OF EDUCATION TO PROVIDE FURTHER RESPONSES TO FORM INTERROGATORIES

CASE #	CASE NAME	HEARING NAME
CVRI2406954	HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES (SET TWO)

CASE #	CASE NAME	HEARING NAME
CVRI2406954	HUNT vs RIVERSIDE COUNTY OFFICE OF EDUCATION	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSIONS (SET ONE)

Tentative Ruling:

Moving party: Plaintiff Pertina Hunt
Responding party: Defendant Riverside County Office of Education

This is an employment dispute. In August 2017, Plaintiff Pertina Hunt (“Plaintiff”) began her employment with Defendant Riverside County Office of Education (“RCOE”) as a Phlebotomy Technician Instructor. (FAC ¶ 11.) In September 2022, Plaintiff transitioned to Medical Assistant Instructor. (*Id.*) From October 2022 through June 2023, Plaintiff was on approved CFRA/FMLA leave following the death of her daughter, during which time Defendant Trisha Jenkins (“Jenkins”) became her supervisor. (*Id.* at ¶ 13(a).) After Plaintiff returned, she requested accommodations for clinically diagnosed anxiety, complained about the lack of ADA accommodations for her students, and complained about a classroom cockroach infestation and racially charged remarks by Jenkins. (*Id.* at ¶ 13(b)-(g).)

On October 3, 2023, Plaintiff received a “conference summary” from Jenkins citing alleged classroom release time violations. (*Id.* at ¶ 13(h).) Approximately three weeks later, on October 24, 2023, Plaintiff was placed on an Employee Improvement Assistance Plan (“EIAP”) citing the same issues as the “conference summary.” (*Id.* at ¶ 13(j).) Plaintiff’s FAC refers to the performance improvement document as a “Performance Improvement Plan” or “PIP.” (FAC ¶ 13(j).) The parties’ motion papers, separate statements, and oppositions refer to the same category of document as an “Employee Improvement Assistance Plan” or “EIAP.” For consistency, the document is referred to as the EIAP throughout this ruling.

On February 1, 2024, Plaintiff submitted a formal rebuttal and internal complaint regarding Jenkins’s conduct. (*Id.* at ¶ 14(a).) On February 27, 2024, Plaintiff was informed her contract would not be renewed. (*Id.* at ¶ 14(e).) Her last day of work was June 30, 2024. (*Id.* at ¶ 15(e).)

Plaintiff filed her original Complaint on December 11, 2024, and her operative First Amended Complaint (“FAC”) on May 28, 2025. The FAC asserts the following nine causes of action against RCOE and Jenkins (collectively, “Defendants”): (1) FEHA discrimination, (2) FEHA hostile work environment harassment, (3) FEHA retaliation, (4) FEHA failure to provide reasonable accommodations, (5) FEHA failure to engage in the interactive process, (6) FEHA failure to prevent discrimination, harassment, or retaliation, (7) whistleblower retaliation under Lab. Code § 1102.5, (8) retaliation for reporting working conditions under Lab. Code § 232.5, and (9) intentional infliction of emotional distress (“IIED”).

On February 24, 2026, Plaintiff propounded Special Interrogatories (“SROGs”), Set Two, Requests for Admission (“RFAs”), Set One, and Form Interrogatories – Employment (“FROGs”), Set Two on RCOE. (Rishwain Decl. ¶ 2, Ex. 1.) After multiple extensions, RCOE served its responses on April 27, 2026. (*Id.* at ¶¶ 3–4.) The three motions now before the Court all arise from the same non-renewal decision and the same performance improvement documentation.

Motion to Compel SROG Nos. 32, 41, 52–57

Plaintiff moves to compel further responses to SROG Nos. 32, 41, and 52 through 57. For SROG Nos. 32 and 41 (the performance deficiencies underlying the non-renewal decision and the reasons for the October 24, 2023 EIAP), Plaintiff argues that RCOE’s answers are evasive because they hedge with “including but not limited to” and rely on vague phrases like “multiple professional concerns.” For SROG Nos. 52 through 57, Plaintiff argues that RCOE’s identical boilerplate objections to narrow, time-bounded contention interrogatories about the three-week window between the October 3, 2023 conference summary and the October 24, 2023 EIAP are meritless, because the terms come from RCOE’s own documents, and “assumes facts” and “lacks

foundation” are trial objections improper in written discovery. Plaintiff seeks sanctions of \$3,900.00 against RCOE and its counsel.

RCOE filed only a short memo largely deferring to its separate statement, arguing that the responses are Code-compliant, that RCOE provided supplemental responses on May 27, 2026, and agreed to provide additional further responses during meet and confer, and that Plaintiff is simply unhappy with the content. RCOE seeks sanctions of \$2,030.00 against Plaintiff.

In reply, Plaintiff reiterates that “including but not limited to” is an admission on its face that the list is incomplete, so RCOE must strike the qualifier or identify what else it means. Plaintiff further argues that RCOE’s assertion that it “has not made any contentions in this regard” is a substantive answer buried in boilerplate objections, and if that is its position, it must be stated under oath rather than concealed by an objection. Moreover, Plaintiff contends that RCOE’s silence on the vagueness and overbreadth points leaves her showing unrebutted.

Motion to Compel RFA Nos. 9 and 10

Plaintiff moves to compel further responses to RFA No. 9 (admit the February 13, 2024 EIAP was the “operative” plan “in effect” at the non-renewal decision) and RFA No. 10 (admit Plaintiff met all EIAP metrics as of that decision), arguing that RCOE’s vagueness and ambiguity objections and non-responsive narratives are not Code-compliant. Plaintiff seeks sanctions of \$3,250.00 against RCOE and its counsel.

In opposition, RCOE argues that the objections were made in good faith. It contends “operative” and “in effect” are ambiguous because every EIAP version remains relevant and no single plan governs, and “all metrics” is overbroad because it could sweep in the entire California Standards for the Teaching Profession (“CSTP”), which are irrelevant. RCOE further states that it offered to provide further responses if Plaintiff would clarify the meaning of the disputed terms, but Plaintiff declined to do so. It also argues that where a party objects to an entire request there is no remainder left to answer, and that substantial justification defeats sanctions.

In reply, Plaintiff argues that the opposition itself proves the RFAs are intelligible, because RCOE explains what “operative” means and takes the substantive position that all versions remained relevant, and that RCOE’s “pattern and practice of improvement” narrative as to RFA No. 10 is a denial masquerading as an objection. She further argues that “lacks foundation” is a trial objection improper in written discovery, and RCOE cannot claim not to understand “metrics” it created, defined, monitored, and relied upon for the non-renewal decision, and that the “no remainder” shelter applies only where the objection is valid, which these are not.

Motion to Compel FROG No. 217.1

Plaintiff moves to compel a further response to FROG No. 217.1 as to RFA Nos. 9 and 10, arguing that RCOE improperly grouped subparts (b) through (d) and did not separately identify supporting facts, knowledgeable persons, documents, and custodians. Plaintiff seeks sanctions of \$3,250.00 against RCOE and its counsel.

RCOE did not file a separate opposition memorandum. It filed only a separate statement, standing on the same vagueness and ambiguity objections underlying RFA Nos. 9 and 10.

With no opposition memorandum, Plaintiff argues that the motion is effectively un rebutted. In any event, FROG No. 217.1 requires separate, request-by-request disclosure of facts, witnesses, documents, and custodians, and grouping “(b) through (d)” while repeating the RFA response is nonresponsive. Plaintiff asserts that an objection to the underlying RFA does not excuse compliance with FROG No. 217.1 for non-admissions, and RCOE’s own RFA No. 10 response recites substantive factual positions (the “pattern and practice of improvement” theory), so it cannot simultaneously claim nothing to disclose.

Meet and Confer

A motion to compel further responses to FROGs and SROGs must be accompanied by a meet and confer declaration under CCP § 2016.040. (CCP § 2030.300(b)(1).) The same requirement applies to a motion to compel further responses to RFAs. (CCP § 2033.290(b)(1).) A compliant declaration must state facts showing “a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (CCP § 2016.040.)

The record here reflects a written meet and confer only. Plaintiff’s counsel sent a May 14, 2026 letter identifying each deficient response across SROGs, FROGs, and RFAs, and requesting supplementation. (Rishwain Decl. ¶¶ 4, 5, Ex. 3.) RCOE responded by letter on May 27, 2026 declining to supplement. (*Id.* at ¶ 6.) Plaintiff followed up in writing on May 29, 2026. (*Id.* at ¶ 7.) RCOE confirmed impasse in a June 3, 2026 email stating that Defendant will not supplement the discovery at issue. (*Id.* at ¶ 5, Ex. 3.) The record does not reflect any in person meeting, telephone call, or videoconference on the disputed responses. Plaintiff therefore did not fully satisfy the meet and confer requirement. Notwithstanding this deficiency, the Court will decide the matter on the merits.

Analysis

1. Special Interrogatories (Set Two), Nos. 32, 41, 52–57

Each answer to an interrogatory must be as complete and straightforward as the information reasonably available to the responding party permits, and if an interrogatory cannot be answered completely it must be answered to the extent possible. (CCP §§ 2030.220(a), (b).) On receipt of interrogatory responses, the propounding party may move to compel a further response where an answer is evasive or incomplete or where an objection is without merit or too general. (CCP §§ 2030.300(a)(1), (3).) The burden lies with the responding party to justify any objection or failure to answer, and a party may not deliberately misconstrue a question in order to supply an evasive answer. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 788.) A responding party who interposes objections that are unreasonable, evasive, or lacking in legal merit is subject to monetary sanctions. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1281, 1284; CCP §§ 2023.010(e), (f), 2023.030(a).)

Plaintiff moves to compel further responses to SROG Nos. 32, 41, and 52 through 57. SROG No. 32 asks RCOE to identify with specificity the performance deficiencies it contends were the reasons for non-renewal of Plaintiff’s contract. SROG No. 41 asks RCOE to state all reasons Plaintiff was placed on the October 24, 2023 EIAP. SROG Nos. 52 through 57 ask RCOE

to identify instances of specific alleged performance deficiencies during the three-week period between the October 3, 2023 conference summary and the October 24, 2023 EIAP.

a. SROG Nos. 32 and 41 (“including but not limited to”)

RCOE answered both interrogatories by listing purported performance deficiencies, each list prefaced with the phrase “including but not limited to.” (Pl.’s Separate Statement [SROG] pp. 3, 6.) A response that identifies a subset of information while signaling on its face that additional information exists is not “complete and straightforward” within the meaning of CCP § 2030.220(a). (CCP § 2030.220(a).) Either the listed items are the totality of the reasons for non-renewal and the EIAP, in which case the hedge must be removed, or they are not, in which case the remaining reasons must be identified. RCOE cannot preserve the option to add reasons later while representing that its answer is as complete as reasonably available information permits.

Several of the listed items are themselves conclusory. RCOE states, for example, that “multiple professional concerns were communicated to the plaintiff and resulted in a documented conference summary,” without identifying the concerns. (Pl.’s Separate Statement [SROG] pp. 7:14–15.) Section 2030.220 requires factual specificity, not category labels, particularly where the underlying facts are exclusively within RCOE’s knowledge and control. (CCP § 2030.220(a).) RCOE’s opposition does not defend the “including but not limited to” formulation or the conclusory characterizations. Accordingly, **further responses to SROG Nos. 32 and 41 are ordered.**

b. SROG Nos. 52 through 57 (identical boilerplate objections)

RCOE responded to each of these six interrogatories with the same five objections, namely that the interrogatory (1) assumes facts not in evidence, (2) lacks foundation, (3) is vague and ambiguous, (4) is overbroad, and (5) is compound. (Pl.’s Separate Statement 9:23–29:18.) No substantive response was provided. (*Id.*) None of these objections are well taken.

First, “assumes facts not in evidence” and “lacks foundation” are trial evidentiary objections and do not properly lie against written discovery, where there is no evidentiary record before the court. (*West Pico Furniture Co. v. Sup. Ct.* (1961) 56 Cal.2d 407, 421.) The interrogatories do not assume that Plaintiff engaged in the identified conduct. They ask whether RCOE contends she did. If RCOE takes the position that it makes no such contention, the Code-compliant response is a substantive answer to that effect, not an objection. (CCP § 2030.220(a).)

Second, the vague and ambiguous objection is not sustained by any showing of what is vague. A responding party that objects must set forth the specific ground for the objection clearly in the response. (CCP § 2030.240(b).) The interrogatories use terminology drawn directly from RCOE’s own October 3, 2023 conference summary. (Pl.’s Mot. 10:27–11:2.) A party may not credibly plead confusion about terms it authored and used in its own employment documents. (*Deyo, supra*, 84 Cal.App.3d at 783.)

Third, the overbreadth objection is unsupported. Each interrogatory is limited to (1) a single category of conduct, (2) an approximately three-week window between October 3 and October 24, 2023, and (3) RCOE’s own contentions about Plaintiff’s performance. (Pl.’s Separate Statement [SROG] 12:7–13.)

Fourth, the compound objection lacks merit. The compound question rule should “apply only where *more than a single subject* is covered by the question,” so that “[q]uestions regarding the same subject” are permissible even if they include an “and” or “or.” (*Clement, supra*, 177 Cal.App.4th at 1291.) Each interrogatory poses a single question directed to a single subject, and the request for dates and descriptions merely defines the level of detail required, not multiple subjects. (Pl.’s Separate Statement [SROG] 12:11–13.)

Based on the foregoing, the Court **GRANTS** Plaintiff’s motion to compel further responses to SROG Nos. 32, 41, and 52 through 57. For Nos. 32 and 41, RCOE shall remove the “including but not limited to” qualifier and either confirm the lists are exhaustive or identify all additional deficiencies and reasons on which it relied, and shall replace conclusory characterizations with factual specifics. For Nos. 52 through 57, RCOE shall provide substantive responses identifying each instance it contends occurred during the three-week window or state under oath that it contends no such instances occurred.

2. Requests for Admission (Set One) Nos. 9–10

Each answer to an RFA must be as complete and straightforward as the information reasonably available to the responding party permits. (CCP § 2033.220(a).) The response must admit so much of the matter as is true, deny so much as is untrue, or specify so much as to the truth of which the party lacks sufficient information or knowledge, and where lack of information is invoked the party must state under oath that a reasonable inquiry has been made and the information known or readily obtainable is insufficient to admit the matter. (CCP §§ 2033.220(b), (c).) A party may move to compel a further response where an answer to a particular request is evasive or incomplete or where an objection is without merit or too general. (CCP §§ 2033.290(a)(1), (2).) An answer must be responsive, and a party may not supply “deftly worded conclusionary answers designed to evade” the request or “deliberately misconstrue a question for the purpose of supplying an evasive answer.” (*Deyo, supra*, 84 Cal.App.3d at 783.)

Plaintiff moves to compel further responses to RFA Nos. 9 and 10. RFA No. 9 asks RCOE to admit that the February 13, 2024 EIAP (Bates Numbered 0291-0294) was the operative EIAP in effect when RCOE made the non-renewal decision. (Pl.’s Separate Statement [RFA] 3:4–6.) RFA No. 10 asks RCOE to admit that Plaintiff met all EIAP metrics as of the date of the non-renewal decision. (*Id.* at 5:11–12.)

a. RFA No. 9 (which EIAP version was operative)

RCOE objected on the ground that “operative Employee Improvement Assistance Plan in effect” is vague and ambiguous and offered to respond if plaintiff would define the phrase. (Pl.’s Separate Statement [RFA] 3:13–15.) The objection is not sustainable. The request identifies the target document by title, date, and Bates range, and the terms “operative” and “in effect” are ordinary English readily understood in context. (*Id.* at 3:4–6.) A responding party may not claim vagueness about its own document. (*Deyo, supra*, 84 Cal.App.3d at 783.)

The identity of the operative EIAP is directly at issue because RCOE has advanced the EIAP as the basis for its non-renewal decision, and additional versions of the EIAP were generated both before and after the February 27, 2024 non-renewal letter. (Pl.’s Separate Statement [RFA] 3:28–4:7.) The information sought is exclusively within RCOE’s knowledge and control. (*Id.*) The

proper response is to admit, deny, or state under oath that after reasonable inquiry the information is insufficient to admit or deny. (CCP §§ 2033.220(b), (c).)

b. RFA No. 10 (whether Plaintiff met all EIAP metrics)

RCOE objected on vagueness, ambiguity, and overbreadth grounds and then supplied a narrative stating that the EIAP “require[s] an employee to demonstrate a pattern and practice of improvement rather than simply improvement in an area for a limited time” and that “[m]eeting a metric on one occasion does not demonstrate a pattern or practice of improvement.” (Pl.’s Separate Statement [RFA] 5:14–19.)

The objections are not sustainable. The EIAP metrics are RCOE’s own performance criteria, which RCOE defined, monitored, and evaluated against, and which RCOE has relied upon as the ground for non-renewal. (*Id.* at 6:19–25.) A party cannot credibly claim it does not understand its own evaluation criteria. (*Deyo, supra*, 84 Cal.App.3d at 783.) The temporal frame, being the date the non-renewal decision was made, forecloses the overbreadth objection. (Pl.’s Separate Statement [RFA] 6:25–27.)

The narrative that follows the objections is itself a substantive contention about how the EIAP should be interpreted and applied, and confirms that RCOE understood the request. (Pl.’s Reply 6:14–26.) Section 2033.220 does not permit a responding party to substitute an argumentative narrative for the required admission, denial, or verified statement of insufficient information. (CCP §§ 2033.220(b), (c); *Deyo, supra*, 84 Cal.App.3d at 783.) If RCOE contends plaintiff failed one or more metrics, it must deny the request. If it contends she met them all, it must admit. If it lacks sufficient information after a reasonable inquiry, it must so state under oath. (CCP §§ 2033.220(b), (c).)

Accordingly, the Court **GRANTS** Plaintiff’s motion to compel further responses to RFA Nos. 9 and 10. Each response shall admit, deny, or state under oath that after reasonable inquiry the information known or readily obtainable is insufficient to admit or deny.

3. Form Interrogatories – Employment (Set Two) No. 217.1

RCOE filed no memorandum of points and authorities in opposition to the FROG motion, only a separate statement. CRC Rule 3.1113(a) authorizes the Court to construe the absence of a required memorandum as an admission that the motion has merit. (CRC Rule 3.1113(a).) The merits are nonetheless addressed on the papers submitted.

FROGs are governed by the same rules as specially prepared interrogatories, and a party may move to compel a further response where an answer is evasive or incomplete or where an objection is without merit or too general. (CCP §§ 2030.300(a)(1), (3).) FROG No. 217.1 requires, for each RFA not unqualifiedly admitted, that the responding party state the number of the request, state all facts on which its response is based, identify all persons with knowledge of those facts, and identify all documents and tangible things supporting the response. (Pl.’s Separate Statement [FROG] 3:3–12.) Each answer must be as complete and straightforward as the information reasonably available to the responding party permits. (CCP § 2030.220(a).) Responses that are not tied to the individual request, or that merely reference the underlying RFA response, are not responsive. (*Deyo, supra*, 84 Cal.App.3d at 784.)

Plaintiff moves to compel a further response to FROG No. 217.1 as it relates to RFA Nos. 9 and 10. FROG No. 217.1 requires, as to each RFA that was not an unqualified admission, that RCOE state the number of the request, state the facts on which the response is based, identify persons with knowledge, and identify supporting documents and tangible things. (Pl.’s Separate Statement [FROG] 3:4–12.)

RCOE unqualifiedly admitted only one of the twelve RFAs. (*Id.* at 6:10–18.) For each remaining RFA, FROG No. 217.1 required a request-by-request statement of facts, witnesses, and documents. (*Id.*) RCOE instead grouped subparts (b) through (d) and copied its RFA responses into 217.1. (*Id.*) That approach does not tie specific facts to specific requests, does not identify which persons have knowledge of which facts, and does not identify documents or custodians on a request-by-request basis, and therefore does not satisfy FROG No. 217.1. (CCP § 2030.220(a); *Deyo, supra*, 84 Cal.App.3d at 784.)

As to RFA No. 9, RCOE copied its vagueness objection into 217.1 without providing any facts, witnesses, or documents. (Pl.’s Separate Statement [FROG] 5:11–14.) For the reasons set forth above, that objection is not sustainable, and FROG No. 217.1 requires a substantive request-by-request disclosure.

As to RFA No. 10, RCOE copied its objections and its “pattern and practice of improvement” narrative into FROG No. 217.1, again with no supporting facts, witnesses, or documents. (*Id.* at 5:15–21.) Where a responding party affirmatively asserts, as RCOE does here, that a plaintiff failed to demonstrate a pattern of improvement, Form No. 217.1 requires the party to identify the metric or metrics she is said to have missed, the facts supporting that contention, the persons with knowledge, and the documents evidencing those facts. (CCP § 2030.220(a).)

The information sought bears directly on the central issues in this action, including whether RCOE’s stated performance based reasons for non-renewal were genuine or pretextual and whether RCOE possessed any factual basis for its conclusion that plaintiff was not meeting expectations. (Pl.’s Separate Statement [FROG] 6:3–8.)

Accordingly, the Court **GRANTS** Plaintiff’s motion to compel further response to FROG No. 217.1 as to RFA Nos. 9 and 10. RCOE shall serve further response without objection that separately addresses subparts (b), (c), and (d) for each non-admitted RFA.

4. Consolidated Monetary Sanctions

Plaintiff requests monetary sanctions on each of the three motions, totaling \$10,400.00.

Motion	Hours	Rate	Requested
SROG (Set Two)	6.0	\$650	\$3,900.00
RFA (Set One)	5.0	\$650	\$3,250.00
FROG (Set Two)	5.0	\$650	\$3,250.00
Total	16.0		\$10,400.00

RCOE cross-requests \$2,030.00 in sanctions against Plaintiff on the SROG motion, based on 7 hours at \$290.00 per hour.

Sanctions are mandatory against the party who unsuccessfully makes or opposes a motion to compel further responses to interrogatories or requests for admission, unless the Court finds substantial justification or other circumstances that would make the award unjust. (CCP §§ 2030.300(d), 2033.290(d).) Making an unmeritorious objection or an evasive response is a misuse of the discovery process, and the Court may order the offending party to pay the reasonable expenses, including attorney's fees, incurred as a result. (CCP §§ 2023.010(e), (f), 2023.030(a).)

RCOE is the unsuccessful party. As discussed above, RCOE's responses to SROG Nos. 32, 41, and 52 through 57, RFA Nos. 9 and 10, and FROG No. 217.1 are not Code-compliant. RCOE offered no substantial justification for its responses to SROGs, and no memorandum at all on FROG. On the RFA, RCOE invoked substantial justification under sections 2033.290(d) and 2023.010(h), (i), arguing its objections were Code-compliant and that it offered to supplement upon clarification. That argument fails for the reasons stated in the merits analysis above. The terms "operative," "in effect," and "metrics" are RCOE's own EIAP terminology, and RCOE's willingness to supplement upon clarification does not create substantial justification for objections that lacked merit in the first instance. No other circumstance makes an award unjust.

Although the three motions are procedurally distinct, they share a common factual background, a single meet and confer record, and substantially overlapping legal authorities. The RFA motion and the FROG motion are particularly intertwined, because FROG No. 217.1 exists only as a follow-on to RFA Nos. 9 and 10 and turns on the same underlying dispute. The Court therefore reduces the awards accordingly.

- SROGs - **\$3,900.00** for six (6) hours at \$650 per hour.
- RFA – Reduced amount of **\$2,600.00**, representing four (4) hours at \$650.00 per hour.
- FROG – Reduced to **\$1,300.00**, representing two (2) hours at \$650.00 per hour.

The Court therefore **GRANTS** Plaintiff's requests for monetary sanctions in the reduced total amount of **\$7,800.00** against RCOE and its counsel, and **DENIES** RCOE's cross-request for \$2,030.00.

Summary: **GRANT** Plaintiff's Request for Monetary Sanctions in the reduced amount of \$7,800.00 ordered payable within 30 days of this order. **DENY** Defendant RCOE's Cross-Request for Monetary Sanctions. **GRANT** Plaintiff's three Motions to Compel Further Responses to Special Interrogatories (Set Two) Nos. 32, 41, 52–57, Requests for Admissions (Set One) Nos. 9–10, and Form Interrogatories – Employment (Set Two) No. 217.1.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500875	FARLEY-HAY vs FLANIGAN	MOTION FOR SUMMARY ADJUDICATION ON CROSS-COMPLAINT

Tentative Ruling: